

CinderCloud Enterprise MSA - Main Agreement

1. Parties and Purpose

This synthetic agreement is entered as of 2026-04-07 between CinderCloud Holdings LLC ("Party A") and CinderCloud Operations Inc. ("Party B"). The agreement concerns the fictional software services relationship described in this document.

2. Term

The initial term begins on 2026-04-07 and continues for 36 months unless earlier terminated under Section 11.

3. Payment

Party B will pay Party A \$77,500 per month. Undisputed invoices are due 30 days after receipt.

4. Notice

Except where a later amendment expressly provides otherwise, formal notice requires 60 days and must be delivered by tracked courier or the designated notice email.

5. Performance Standard

Party B will perform the defined services in accordance with Exhibit A. A missed internal target is not automatically a material breach unless the agreement expressly says so.

6. Records

Each party must retain transaction and performance records for four years. Records may be used to verify invoices and disputed milestones.

7. Confidentiality

Confidential information may be used only for performance of this agreement. The confidentiality period is five years after disclosure.

8. Insurance

Party B must maintain commercial coverage of at least \$310,000 per occurrence. The agreement does not state any insurance deductible.

9. Liability

Aggregate contractual liability will not exceed \$310,000, except for obligations expressly excluded from the cap in this synthetic agreement.

10. Change Control

No scope, price, schedule, or responsibility changes unless documented in a signed change instrument identifying the affected provision.

11. Termination

Either party may terminate for uncured material breach after written notice and a 20-day cure period. Convenience termination is not permitted under the original agreement.

12. Entire Agreement

This agreement, its exhibits, and later signed amendments constitute the synthetic parties' entire agreement. A later amendment controls over inconsistent earlier language to the extent stated.

General Provision GP-01

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-01 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-02

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-02 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-03

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General Provision GP-04

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General Provision GP-05

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General Provision GP-06

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General Provision GP-07

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General Provision GP-08

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General Provision GP-09

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General Provision GP-10

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Schedule A - Administrative and Performance Records

This schedule is part of the synthetic benchmark agreement. It requires the parties to preserve written records of notices, approvals, invoices, milestones, disputes, and signed changes. It does not alter the specific payment, notice, liability, insurance, or termination terms stated in the agreement or its amendments.

For benchmark purposes, the parties agree that a later signed amendment controls only to the extent it expressly changes an earlier provision. Informal emails, recollections, draft notes, and meeting comments do not amend the agreement unless the formal change-control requirements are satisfied.

Schedule B - Administrative and Performance Records

This schedule is part of the synthetic benchmark agreement. It requires the parties to preserve written records of notices, approvals, invoices, milestones, disputes, and signed changes. It does not alter the specific payment, notice, liability, insurance, or termination terms stated in the agreement or its amendments.

For benchmark purposes, the parties agree that a later signed amendment controls only to the extent it expressly changes an earlier provision. Informal emails, recollections, draft notes, and meeting comments do not amend the agreement unless the formal change-control requirements are satisfied.

Schedule C - Administrative and Performance Records

This schedule is part of the synthetic benchmark agreement. It requires the parties to preserve written records of notices, approvals, invoices, milestones, disputes, and signed changes. It does not alter the specific payment, notice, liability, insurance, or termination terms stated in the agreement or its amendments.

For benchmark purposes, the parties agree that a later signed amendment controls only to the extent it expressly changes an earlier provision. Informal emails, recollections, draft notes, and meeting comments do not amend the agreement unless the formal change-control requirements are satisfied.

Schedule D - Administrative and Performance Records

This schedule is part of the synthetic benchmark agreement. It requires the parties to preserve written records of notices, approvals, invoices, milestones, disputes, and signed changes. It does not alter the specific payment, notice, liability, insurance, or termination terms stated in the agreement or its amendments.

For benchmark purposes, the parties agree that a later signed amendment controls only to the extent it expressly changes an earlier provision. Informal emails, recollections, draft notes, and meeting comments do not amend the agreement unless the formal change-control requirements are satisfied.

Schedule E - Administrative and Performance Records

This schedule is part of the synthetic benchmark agreement. It requires the parties to preserve written records of notices, approvals, invoices, milestones, disputes, and signed changes. It does not alter the specific payment, notice, liability, insurance, or termination terms stated in the agreement or its amendments.

For benchmark purposes, the parties agree that a later signed amendment controls only to the extent it expressly changes an earlier provision. Informal emails, recollections, draft notes, and meeting comments do not amend the agreement unless the formal change-control requirements are satisfied.